

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD.,
AND CJ DELUZ NIGERIA LTD., *Complainants*

v.

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA
AND RAYA BAKHIREV, *Respondents*.

DOCKET NO. 20-12

Served: September 18, 2020

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER DENYING COMPLAINANTS' MOTION FOR ENTRY OF DEFAULT DECISION

On September 16, 2020, Complainants filed a motion seeking an order striking Respondents' answer, prohibiting Respondents from supporting their defense or introducing documents, and issuing a default decision ("motion"). Complainants argue that the verification of the answer is undated and a hybrid of affidavit and unsworn declaration. Motion at 3-5.

On September 17, 2020, Respondents filed their opposition to the motion, arguing that the answer is dated and signed by the attorney of record in full compliance with Commission regulations, and that in addition, two notarized verifications were provided. Opposition at 1.

There are two relevant Commission rules.

§502.6 Verification of documents.

(a) If a party is represented by an attorney or other person qualified to practice before the Commission under the rules in this part, each pleading, document or other paper of such party filed with the Commission shall be signed by at least one person of record admitted to practice before the Commission in his or her individual name, whose address shall be stated. Except when otherwise specifically provided by rule or statute, such pleading, document or paper need not be verified or accompanied by affidavit. The signature of a person admitted or qualified to practice before the Commission constitutes a certificate by the signer that the signer has read the pleading, document or paper; that the signer is authorized to file it; that to the best of the signer's knowledge, information, and belief formed after reasonable inquiry, the filing is well grounded in fact and is warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law; and that it is not interposed for any

improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. For a willful violation of this section, a person admitted or qualified to practice before the Commission may be subjected to appropriate disciplinary action.

(b) If a party is not represented by a person admitted or qualified to practice before the Commission, each pleading, document or other paper of such party filed with the Commission shall be signed and verified under oath by the party or by a duly authorized officer or agent of the party, whose address and title shall be stated.

(c) Wherever, under any rules of this part, any matter is required or permitted to be supported, evidenced, established, or proved by the sworn declaration, verification, certificate, statement, oath, or affidavit, in writing of the person making the same (other than a deposition under §502.143 or §502.144), such matter may, with like force and effect, be supported, evidenced, established, or proved by the unsworn declaration, certificate, verification, or statement, in writing of such person which is subscribed by such person, as true under penalty of perjury, in substantially the following form:

(1) If executed without the United States: "I declare (or certify, verify, or state) under penalty of perjury under the laws of the United States of America that the foregoing is true and correct."

(2) If executed within the United States, its territories, possessions, or commonwealths: "I declare (or certify, verify, or state) under penalty of perjury that the foregoing is true and correct."

46 C.F.R. § 502.6.

§502.62 Private party complaints for formal adjudication.

(b) Answer to a complaint. (1) Time for filing. A respondent must file with the Commission an answer to the complaint and must serve the answer on complainant as provided in subpart H of this part within 25 days after the date of service of the complaint by the Commission or the Complainant unless this period has been extended under §502.67 or §502.102, or reduced under §502.103, or unless motion is filed to withdraw or dismiss the complaint, in which latter case, answer must be filed within 10 days after service of an order denying such motion. For good cause shown, the presiding officer may extend the time for filing an answer.

(2) Contents of answer. The answer must be verified and must contain the following:

(i) The name, address, and email address of each respondent, and the name, address, and email address of each respondent's attorney or representative;

- (ii) Admission or denial of each alleged violation of the Shipping Act;
- (iii) A clear and concise statement of each ground of defense and specific admission, denial, or explanation of facts alleged in the complaint, or, if respondent is without knowledge or information thereof, a statement to that effect; and
- (iv) Any affirmative defenses, including allegations of any additional facts on which the affirmative defenses are based.

46 C.F.R. § 502.62(b)(1)-(2).

The verified answer filed by Respondents in this proceeding responds to the 172 allegations in the complaint and alleges five affirmative defenses. The answer is dated and signed by the attorney of record for Respondents and includes his full address. In addition, two verifications are provided, both of which state “I declare under penalty of perjury that the foregoing is true and correct.” Both verifications are signed and include the stamp and signature of a notary public from King’s county, New York, whose commission expires on April 3, 2021. The answer filed by Respondents is sufficient to meet the Commission’s requirements. Accordingly, the motion is denied.

Pursuant to the August 7, 2020, initial order, the parties are required to participate in a preliminary conference with CADRS and file a joint status report. By September 24, 2020, the parties must coordinate with each other and provide CADRS with three different dates and times that they are available to meet. In addition, by September 28, 2020, the parties must file a joint status report with proposed schedule as required by the initial order.

For the reasons stated above, it is hereby **ORDERED** that Complainants’ motion for default decision be **DENIED**, that the parties contact CADRS by September 24, 2020, and that the parties file a joint status report with proposed schedule by September 28, 2020.



Erin M. Wirth
Chief Administrative Law Judge